



WESTMORELAND BOROUGH COUNCIL

Housing Solutions Service
Civic Centre, 14 Crown Square
Kendal, Cumbria, LA9 4DL

Our ref.: WBC/HAS/2024/01872
Your ref.: HSF-2024-Q1-4471
Service: Allocations Team
Date of issue: 11 April 2024

Ms Aisha Rahimi-Mendez
Flat 4B, 27 Elmsworth Terrace
Kendal, Cumbria, LA9 6QR

Telephone: 07700 900 842 · Email: a.rahimi.mendez@protonmail.co.uk

Dear Ms Rahimi-Mendez,

HOUSING ALLOCATION DECISION NOTICE *Re: Application for re-housing under the Council's Allocation Scheme*

I write further to your application dated **22 January 2024**, received by this Authority on **24 January 2024**, and to subsequent correspondence and verification interviews conducted on **06 February** and **19 March 2024**. Following completion of the statutory eligibility assessment, household composition review, and verification of supporting documentation, the Council has reached a determination in accordance with sections 159–174 of the Housing Act 1996 (as amended) and the Council's published Allocation Scheme (rev. October 2023).

The substantive decision, together with the bands and priority awarded, is set out in **Part D** of this notice (page 5). Pages 2 to 4 contain the verified case record relied upon. Your statutory right of review is explained in **Annex II**.

DETERMINATION: QUALIFYING APPLICANT — BAND B (REASONABLE PREFERENCE)

Effective date: 11 April 2024 · Review window closes: 30 May 2024

Yours sincerely,

D. Whitcombe

Daniel J. Whitcombe

Senior Housing Options Officer (Band 7)

Email: d.whitcombe@westmoreland.gov.uk

Encl.: Verified case record (pp. 2–4) · Determination and review rights (p. 5) · Annex I (eligibility criteria, issued separately) · Annex II (statutory review procedure, issued separately).



PART A — APPLICANT & HOUSEHOLD COMPOSITION

Verified against documentary evidence under Allocation Scheme §4.2

A.1 Primary applicant

Full legal name:	Rahimi-Mendez, Aisha (Ms)
Date of birth:	07 / 11 / 1986 (age 37 at assessment)
National Insurance No.:	XX 12 34 56 D (verified — HMRC RTI cross-check)
Immigration status:	British citizen — passport sighted (06 Feb 2024)
Local connection:	Resident in borough since 14 March 2017 (6y 11m)
Household role:	Lead tenant / sole applicant

A.2 Household members (co-resident)

#	Full name	Relationship	DOB	Status
1	Tomasz Rahimi	Spouse (married 2014)	22 / 04 / 1983	Joint occupier
2	Léa Rahimi-Mendez	Dependent daughter	09 / 09 / 2017	In full-time education

Total verified household size: **3 persons** (2 adults + 1 dependent child under 18).

A.3 Previous addresses (last 5 years)

From	To	Address	Tenure
03/2017	08/2021	17 Bridgemere Cottages, Burneside Road, Kendal LA9 5RJ	Private rented (AST)
08/2021	Present	Flat 4B, 27 Elmsworth Terrace, Kendal LA9 6QR	Private rented (AST)

A.4 Emergency / next-of-kin contact

Name:	Mrs Margaret S. Akinola (maternal aunt)
Relationship to applicant:	Aunt — confirmed at interview 19/03/2024
Contact number:	07911 406 253
Notes:	Permitted contact in event of urgent welfare concern only. Applicant has expressly declined disclosure of substantive case details to this contact (data-sharing preference recorded).



PART B — EMPLOYMENT, INCOME & REFERENCES

Verified under Allocation Scheme §5.1 and DWP Universal Credit RTI feed

B.1 Primary applicant — employment

Employer name:	Cumbria Mutual Health Trust (NHS, Foundation Trust)
Position held:	Band 5 Senior Pharmacy Technician (substantive)
Length of service:	4 years 7 months (continuous, full-time)
Place of work:	Kendal Community Hospital, Birklands Way, Kendal LA9 7RG
Line manager:	Lead Pharmacist (verifier — identity confirmed at interview)
Verification call placed:	27 Feb 2024 at 10:14 — 01539 887 204
Gross annual income:	£31,247.00 (verified — March 2024 P60 sighted)
Other household income:	£9,180.00 p.a. (spouse, part-time, verified)
Universal Credit:	Not in payment (RTI cross-check, 02/04/2024)

B.2 Income summary & affordability assessment

Source	Gross (p.a.)	Net (p.m.)	Verified by
Applicant — NHS salary	£31,247.00	£2,094.30	P60 + RTI
Spouse — part-time wages	£9,180.00	£701.50	Payslips x3
Child Benefit	£1,331.20	£110.93	HMRC notice
Total household income	£41,758.20	£2,906.73	—
Affordability threshold (Band B cap)	—	£3,200.00	Scheme §5.4
Outcome:	Within threshold — eligible.		

B.3 Character / employment reference

Referee:	Ms Penelope R. Hartwell-Davies, MPharm
Capacity:	Former Head of Pharmacy (2019–2022), CMH Trust
Relationship to applicant:	Direct line manager for 2 yr 11 mo
Reference received:	By signed letter, 08 March 2024 (on file: ref. RF-184)
Referee contact:	p.hartwell-davies@royalpharmsoc.org.uk
Summary:	Wholly favourable. Confirms applicant's good standing, reliability, and engagement with workplace wellbeing initiatives. No matters of concern raised.



PART C — CURRENT ACCOMMODATION & PROPOSED ALLOCATION

Verified under Allocation Scheme §6.3 and §7.1 (suitability)

C.1 Current tenancy

Address:	Flat 4B, 27 Elmsworth Terrace, Kendal, Cumbria LA9 6QR
Tenure:	Assured Shorthold Tenancy (AST)
Landlord:	Private landlord (name retained on case file)
Landlord contact:	01539 612 088 (verified 19/03/2024)
Tenancy start:	14 August 2021
Current rent:	£975.00 p.c.m. (excl. council tax, utilities)
Notice served on applicant:	Yes — Section 21, served 06/01/2024, expiring 09/05/2024
Reason cited by landlord:	Possession sought for own use (family relocation, evidenced)
Property condition (HHSRS):	Category 2 hazards identified — excess cold, damp/mould (inspection 11/02/2024)

C.2 Grounds for reasonable preference

The applicant satisfies the reasonable-preference categories at **s.166A(3)(b)** (people occupying insanitary or unsatisfactory housing) and **s.166A(3)(d)** (people who need to move on medical or welfare grounds — child with diagnosed respiratory condition exacerbated by housing damp; consultant's letter on file, dated 04/03/2024).

The Authority is satisfied that grounds at s.166A(3)(a) (homelessness) are **not** currently engaged, as the Section 21 notice does not expire until 09/05/2024 and the applicant remains lawfully in occupation. A prevention duty under s.195 of the Housing Act 1996 (as amended by the Homelessness Reduction Act 2017) is however **accepted** in parallel (separate notice issued under reference WBC/HRA/2024/00913).

C.3 Proposed allocation

Property reference:	WBC-STK / 218-OAKWELL-09
Address:	9 Oakwell Rise, Burneside, Kendal, Cumbria LA9 6BB
Type:	Two-bedroom upper-floor maisonette (Council housing stock)
EPC rating:	C (76) — meets MEES; recently re-insulated (2022)
Net rent:	£112.40 per week (social rent, secure tenancy)
Service charge:	£6.20 per week (communal lighting and grounds)
Estimated viewing window:	20 May 2024 — 31 May 2024
Allocation status:	Provisional offer subject to expiry of review window

Important. This offer is provisional. The Authority is required by statute to hold the property pending expiry of the review window (30 May 2024). If you wish to view in advance of the window, contact the named officer on page 1.



PART D — DETERMINATION, REVIEW RIGHTS & AUTHORISATION

Issued under section 166A and section 167 of the Housing Act 1996

D.1 Formal determination

Having considered the verified evidence at Parts A–C above, the Westmoreland Borough Council (the “Authority”) determines as follows:

- 1. The applicant is an **eligible** person within the meaning of s.160ZA of the Housing Act 1996.
- 2. The applicant is a **qualifying** person under the Council’s published Allocation Scheme (rev. October 2023), §3.1.
- 3. The applicant is entitled to **reasonable preference** on the grounds set out at C.2 above (s.166A(3)(b) and (d)).
- 4. The applicant is awarded **Band B**, with an effective date of **11 April 2024**.
- 5. A provisional allocation of the property at 9 Oakwell Rise is made under §7.1 of the Scheme, subject to review.

D.2 Right of review

You have a statutory right to request a review of this decision under **section 166A(9)(c)** of the Housing Act 1996. Any request must be in writing within **21 days** of the date of this notice (i.e. on or before **02 May 2024**), addressed to the Reviewing Officer, marked “Section 166A(9) Review”, and quoting reference **WBC/HAS/2024/01872**. The review will be conducted by a senior officer not involved in the original determination; you may make written or oral representations. Full procedural details: Annex II.

D.3 Authorisation

I, the undersigned, being duly authorised by the Chief Executive of Westmoreland Borough Council under standing delegations of 04 April 2022, hereby **approve** the determination set out at D.1 above.

P. Hartwell-Whitfield

Mrs Penelope R. Hartwell-Whitfield

Regional Allocations Manager

Westmoreland Borough Council — duly authorised under standing delegations of 04 April 2022

Date of signature: 11 April 2024

Case prepared by: D. J. Whitcombe (Senior Housing Options Officer), 09 April 2024. Quality-checked by Team Leader (Allocations) 10 April 2024.

Issuing office & contact for this notice

Issuing officer:	Mrs Penelope R. Hartwell-Whitfield, Regional Allocations Manager
Authorising body:	Westmoreland Borough Council, Housing Solutions Service
Office address:	Civic Centre, 14 Crown Square, Kendal, Cumbria, LA9 4DL
Email (reviews):	p.hartwell-whitfield@westmoreland.gov.uk
Correspondence by post:	Mark envelope “S.166A(9) Review” and quote case reference
Office hours:	Monday–Friday, 09:00–16:30 (closed bank holidays)